The influence of empathy in legal professionals handling violent cases involving ASPD offenders on susceptibility to secondary traumatic stress.

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Abstract

Professionals in the legal field are vulnerable to developing secondary traumatic stress (STS) literature views how handling violent criminal cases involving ASPD offenders and the role of high and low empathy influence higher or lower chances of STS, respectively. The review explores how empathy increases or decreases the vulnerability to STS in legal professionals taking care of violent cases with ASPD offenders. The paper synthesizes findings from various studies about ASPD, STS, and particularly the influence of empathy in STS. The literature shows mixed evidence: empathy has been found to play a major role, while few studies found no relationship between empathy and STS. Moreover, the paper has found the influence of ASPD offenders in the development of STS. Later, studies' dataset and descriptive visual analysis was created using Power BI to help evaluate the review's strengths and weaknesses. This review highlights the need for empirical findings with an appropriate sample and calls for training programs protecting legal professionals' well-being.

Keywords: empathy, secondary traumatic stress (STS), violent criminal cases, antisocial personality disorder (ASPD), vicarious trauma (VT), occupational stress, forensic psychology, professional wellbeing, criminal victimization, judicial system impact

1. Introduction

The research focuses on the vulnerability of legal professionals to secondary traumatic stress (STS), in particular the role of empathy in professionals while working with Antisocial Personality Disorder (ASPD) offenders. The topic explores the negative impact on the mental health of professionals in the law field, which influences their anxiety, sleep patterns, and relationships. It also affects the judicial systems in the long run. This review argues that high empathy in legal professionals increases the susceptibility to STS, while low empathy reduces it. In particular, the professionals involved in violent criminal cases with ASPD offenders. However, the literature lacks clarity on gender differences in vulnerability to STS and also lacks empirical clarity on the influence of ASPD offenders and the direct relation between empathy and development of STS.

2. Methodology

This research paper uses a narrative review approach. For the purpose of helping to evaluate this review with reduced subjective bias, included studies' dataset and descriptive visual analytics was created using Power BI.

3. Antisocial personality disorder

This theme explores antisocial personality disorder (ASPD), giving background information, including ASPD individuals' violent nature and distinguishing between ASPD and psychopathy. The studies in this section are connected by their focus on how ASPD individuals' violence would leave their victims traumatized.

3.1 ASPD general

Author, year	Methodology	Sample Size	Key Findings
Johnson, 2019	Research article	n/a	Recognizes the DSM-5 description of Antisocial Personality Disorder as a pervasive pattern of disregard for and violation of the rights of others since age 15.
Gobin et al, 2015	Randomized clinical trial	88	Identifies that individuals with a history of crime-related and physical trauma are more likely to be diagnosed with ASPD than those without such a history.

All the studies give contextual information about ASPD, placing it as a part of the violent personality. Johnson, 2019 (1) highlights the basic definition of ASPD, while Gobin et al, 2015 (2) emphasized the specific trauma associated with ASPD using empirical findings. This suggests the ASPD research focus ranges from conceptual definition to tested findings. Overall, the literature shows a pattern from theoretical to empirical understanding of ASPD in individuals, suggesting that research on ASPD is building on a conceptual foundation and evolving to empirical findings.

3.2 ASPD & violent behavior

Author, year	Methodology	Sample Size	Key Findings
Bruce & Laporte, 2015	cross-sectional survey	162	Highlighted that early starters (childhood onset ASPD) were more likely to be violent and report childhood traumas than late starters (adulthood onset ASPD) and those without antisocial histories.
Yu et al, 2012	systematic review and meta-regression analysis	10,007	Found that ASPD individuals are more violent than individuals with other personality disorders.
Azevedo et al, 2020	cross-sectional study	134	Found that ASPD individuals commit a higher frequency of violent crimes than those without the disorder.

Fridell et al, 2008	longitudinal design	1045	Identified that ASPD individuals were more likely to commit violent, property, and drug crimes than individuals without ASPD, specifically property and drug offenses while violent crimes registered were statistically low and similar to non-ASPD.

Across studies, violence and violent crimes were consistently linked to ASPD individuals. Fridell et al, 2008 (6), Yu et al, 2012 (4) and Azevedo et al, 2020 (5) all supported that violence is positively related to ASPD subjects. While, Fridell et al, 2008 found that ASPD individuals are more prone to commit property, drug crimes and violent crimes but was statistically low and similar to non-ASPD subjects. These differences could have occurred due to differences in the research focus, as Fridell et al, 2008 had aimed to find the type of crime associated while other studies focused on the violent nature with certain variation. Overall, the literature shows a trend toward recognizing the positive relation between violence and ASPD, in particular early ASPD starters are more violent than late starters. As ASPD individuals are associated with violence, they are likely to be involved in cases where victims are left traumatized, which may increase chances of STS development in legal professionals.

3.3 ASPD & psychopathy

Author, year	Methodology	Sample Size	Key Findings
Johnson, 2019	Research article	n/a	Found that psychopaths and sociopaths naturally meet the diagnostic criteria for ASPD. In particular, an estimate of 3-15% of those with ASPD likely have psychopathy and another 30% likely have sociopathy.
Porter et al, 2006	Literature review	n/a	Emphasizes that high-psychopathic individuals are more likely to commit nonsanctioned violence than any other members of society and likely to commit premeditated violence.
Azevedo et al, 2020	cross-sectional study	134	Identifies ASPD patients as more likely to exhibit impulsive aggression than premeditated aggression, while patients having high scores of psychopathic traits are more likely to exhibit premeditated aggression.

All the studies illustrate the difference between psychopathy and ASPD. Johnson, 2019 (1) and Azevedo et al, 2020 (5) shows the bridge between ASPD and psychopathy or psychopathic traits and helps to distinguish. While Porter et al, 2006 (7) discussed only psychopaths and aggression. Additionally, Porter et al, 2006 (7) and Azevedo et al, 2020 (5) found the exhibition of premeditated aggression in ASPD individuals with psychopathic traits or psychopathy. This suggests that both groups of samples are violent, while the extent to which may vary. Overall,

the literature shows a trend toward identifying ASPD as part of the psychopathy spectrum. Moreover, it demonstrates how research is expanding from a traditional focus on psychopathy to other personality disorders such as ASPD, indicating the distinction between ASPD and psychopathy. Therefore, the findings suggest that ASPD with psychopathic traits offenders are more likely to influence STS in professionals compared to ASPD offenders.

4. Secondary trauma stress

This theme examines secondary trauma stress (STS) in general and while focusing on specific factors including traumatized victims and empathy. The studies in this section are connected by their investigation of STS in professionals, specifically those working with traumatized victims and looking at empathy as a factor.

4.1 STS general

Author, year	Methodology	Sample Size	Key Findings
Fischman, 2008	Literature review	n/a	States that STS is not a universal phenomenon that influences all professionals interacting with trauma.
Levin, 2008	Questionnaire	142	Found that on secondary trauma and burnout scales, attorneys were consistently higher than mental health and social service professionals. Additionally, identified that varying levels of psychological distress are linked with the syndromes of STS, burnout, and vicarious trauma (VT).
Groggel, 2023	Interview	37	Found that whether or not professionals cognitively or empathically role-take with victims is influenced by factors including their social statuses related to victims, their own personal experiences, their positions within their organizations, and their organization's mission.
Tehrani, 2007	Survey	149	Recognized that a high number of carers experience a negative perspective about the world – which describes VT – and that challenging themselves and their self-esteem are related to STS.

Across studies, the findings demonstrate the context of STS and examines in general. The studies: Fischman, 2008 (8), Levin, 2008 (9), and Groggel, 2023 (10) emphasize that there are other factors affecting STS apart from empathy. While Levin, 2008 (9) and Tehrani, 2007 (11) suggest the possible positive link between STS and VT. This may suggest that burnout and psychological distress can be indirectly related with STS & VT. Additionally, Levin, 2008 (9) recognizes the difference in STS and burnout scales for professionals in different fields,

emphasizing that findings for different samples may not necessarily be relevant to this review's research question. Altogether, the literature depicts how there are various factors influencing STS and a trend toward linking STS with VT and. This summarises multiple factors influencing STS suggesting that legal professionals' empathy may not necessarily influence STS.

4.2 Traumatized victim

Author, year	Methodology	Sample Size	Key Findings
Levin, 2008	Questionnaire	142	Identified that working with traumatized clients, specifically when attorneys have high caseloads and a frustrating system, increases susceptibility to STS and burnout.
Salston & Figley, 2003	Literature review	n/a	Emphasized that working with victims traumatized by criminal victimization increases the chances of traumatizing professionals.
Tehrani, 2007	Survey	149	Found that a large number of carers working with traumatized and distressed people experience a negative impact on their own assumptions, values and beliefs – describing VT.

Across studies, traumatized victims have been consistently linked to increased risk of STS in professionals working with them. While Levin, 2008 (9) and Salston & Figley, 2003 (12) highlights that working with traumatised victims directly or indirectly influence the development of STS, Tehrani, 2007 (11) recognised the possible development of VT. This difference may have occurred due to the different professionals explored in each study. As previously supported the possible positive relation between VT and STS, the difference may be negligible. Levin, 2008 (9) and Salston & Figley, 2003 (12) highlighted specific other factors along with traumatized clients which may have contributed to increased vulnerability to STS, so traumatized victims alone may not raise the chances of STS which needs empirical clarity. Broadly, the research shows that working with traumatized victims influences STS. Thus findings indicate that legal professionals dealing with traumatized victims are vulnerable to developing STS.

4.3 Empathy

Author, year	Methodology	Sample Size	Key Findings
Salston & Figley, 2003	Literature review	n/a	Recognized that empathy, the desire to assist victims of traumatic events, and exposure to the traumatic material of victims are foundational factors in the development of STS.

Groggel, 2023	Interview	37	Highlighted that workers with past experiences similar or shares social status with their traumatized clients seemed to be more likely to cognitively and sometimes empathically role-take with victims. Moreover, the finding supports empathically role-taking with victims as one of the influences in the formation of STS.
Levin, 2008	Questionnaire	142	Highlighted that across both attorneys and mental health professionals, women had significantly higher scores than men on secondary trauma and burnout scales. Additionally, found that female judges and those who had been on the bench more than six years were at greatest risk of VT.
Richardson et al, 2016	Cross-sectional survey	88	Found that females reported greater empathy than males. Moreover, the study's data identified a non-significant relationship between empathy and STS.
Juvekar & Murali, 2022	Quasi-experimental design	94	Identified that empathy has an effect on VT, while there's no significant effect on psychological distress.
Crumpei & Dafinoiu, 2012	Questionnaires	77	Recognized that there is no relationship between clinical empathy and STS, but instead sympathy increases vulnerability. Furthermore, it emphasized the paradox of the clinical relationship. While high empathy has better results in recovery, in contrast it threatens neutrality and increases the professional's susceptibility to STS symptoms.

Mixed findings about empathy and STS are found. Studies including Salston & Figley, 2003 (12), Groggel, 2023 (10) and Juvekar & Murali, 2022 (14) support that empathy directly or indirectly influences STS development in professionals. However, Richardson et al, 2016 (13) and Crumpei & Dafinoiu, 2012 (15) contradicts as it found non-significant relation between empathy and STS. This difference may have occurred because of different samples as the contradictions are by studies examining the medical professionals, so this may not be relevant to this review's question. In addition, Levin, 2008 (9) recognized the possible other factors including gender difference. This could be because of the difference in empathy level in males and females, as supported by Richardson et al, 2016 (13), but without any evidence testing the relation directly this finding cannot be generalised. On the whole, the review depicts a trend toward recognizing empathy as a factor influencing STS, but with increasing attention to context – such as participants' professions – rather than assuming universal significance, which requires empirical clarity. In conclusion, it's implied that further research should establish empirical

clarity on the direct influence of empathy and STS in legal professionals dealing with ASPD offenders.

5. Discussion

The included studies dataset and dashboard was created, using Power BI, to visually analyse the included studies' characteristics helping to evaluate this literature review's strengths and weaknesses with reduced subjective bias and transparency.

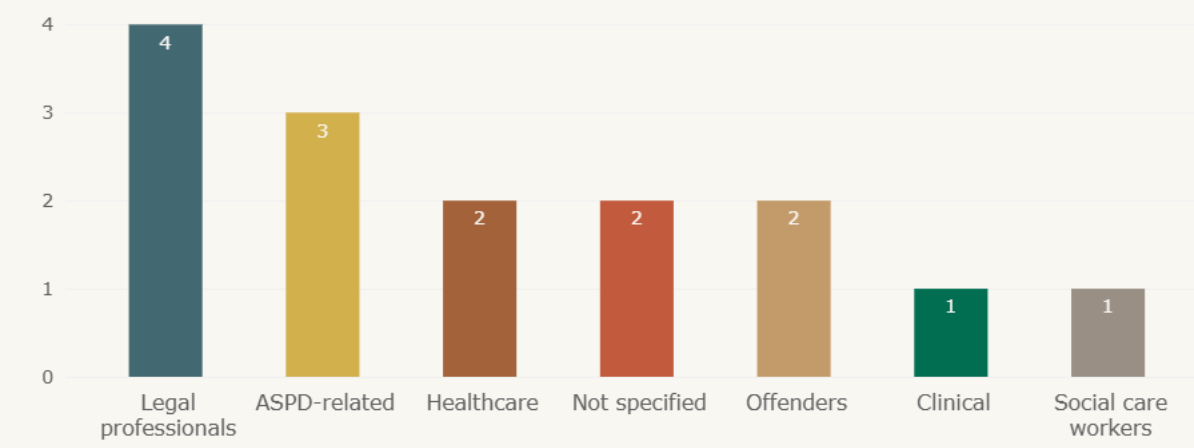


Figure 1: Distribution of populations represented

Figure 1 shows the most represented population in this literature review is legal professionals and ASPD-related. In this review, 26.7% and 20% examined legal professionals and the ASPD-related population, respectively.

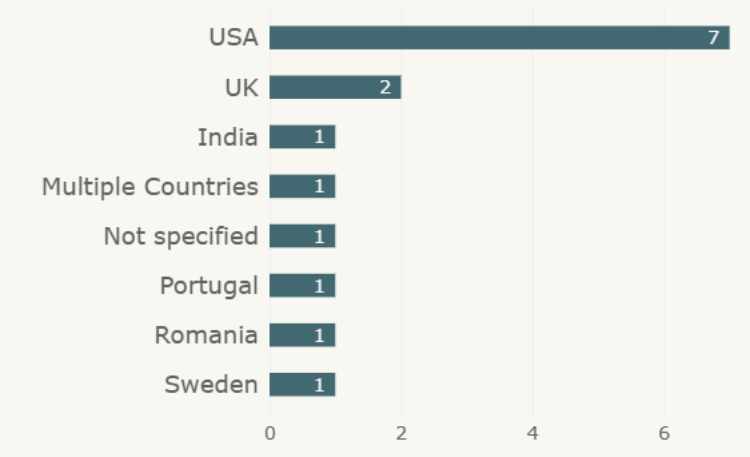


Figure 2: Geographic distribution represented

Figure 2 suggests that 46.7% of the studies' findings supporting the review is based in the USA.

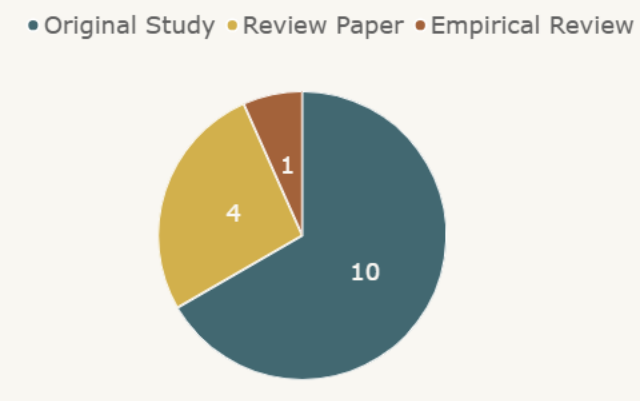


Figure 3: Distribution of study categories represented

Figure 3 shows that 66.7% of the review consists of findings from original studies.

There are many strengths of this review, the most prominent strengths include the following. There were consistent findings across studies showing relationships between ASPD and violent behavior and STS and exposure to traumatic victims, this increases the relevance to the research question. The most represented population studied in this review are legal professionals and ASDP-related, supported by figure 1, which may increase the validity of this paper. Finally, the reviewed studies consist of a different range of methodologies from interviews to longitudinal designs to many other designs, this suggests the holistic approach of the literature review.

However, this paper also has multiple limitations which includes the following. The methodology design used is a narrative review, this may have led to selection bias while choosing the included studies, thus weakening the validity of the findings explored in this review. There were very few studies which examined the direct relation between empathy and STS and none which investigated the relation between STS, empathy and ASDP offenders, this reduces the relevance to the research question. The sample of included studies is only 15 studies and 7 out of the 15 studies were based from USA, supported by figure 2, leading to sampling bias which reduces the generalizability of the findings to the larger population and to other countries, for instance countries with collectivistic culture. Additionally, most of the included studies sample was androcentric, reducing the generalizability to females. The review consists of studies with a variety of methodologies which makes it harder to draw comparison, especially quantitatively.

In the future, use of systematic review instead of narrative review can help reduce selection biases and choose the most relevant studies. The least examined relations highlight the research gap, meaning future researchers could explore the relation among STS, empathy and ASPD offenders and make the unclear relation, STS and empathy, more clear. According to this review, the population that needs to be studied is the legal professionals handling, specifically, cases involving ASPD offenders. Likewise, a sample of female ASDP offenders and legal professionals is required to be researched more and non-western regions as its underrepresented, supported by figure 2.

6. Conclusion

In conclusion, the literature suggests that empathy influences professionals' vulnerability to STS to some extent, though other factors can develop or mitigate STS in professionals. Furthermore, the research shows that ASPD offenders are violent in nature, but the evidence doesn't establish a link between ASPD offenders involved in violent crimes and the susceptibility to STS in professionals directly. Likewise, the literature has found mixed evidence supporting that high-empathy professionals are more vulnerable to developing STS. Therefore, the literature emphasizes the need for empirical clarity with a sample of legal professionals. This review supports the thesis that legal professionals handling violent crimes increase the susceptibility to STS, but highlights the need to explore gender differences in offenders and the need for empirical studies with, in particular, ASPD offenders and ASPD with psychopathic traits offenders. This literature emphasizes and calls for initiatives like training programs for professionals in the legal field to reduce the vulnerability of developing STS and protect their well-being.

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